

SENATE BILL No. 109

DIGEST OF INTRODUCED BILL

Citations Affected: IC 16-34-2-5.

Synopsis: Confidentiality of pregnancy termination reports. States that a health care provider's report concerning the performance of an abortion that is submitted to the Indiana department of health is a medical record, confidential, and not subject to disclosure as a public record.

Effective: Upon passage.

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December 9, 2025, read first time and referred to Committee on Health and Provider Services.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 109

A BILL FOR AN ACT to amend the Indiana Code concerning health.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 16-34-2-5, AS AMENDED BY P.L.56-2023,
2 SECTION 154, IS AMENDED TO READ AS FOLLOWS
3 [EFFECTIVE UPON PASSAGE]: Sec. 5. (a) Every health care
4 provider who performs a surgical abortion or provides, prescribes,
5 administers, or dispenses an abortion inducing drug for the purposes of
6 inducing an abortion shall report the performance of the abortion or the
7 provision, prescribing, administration, or dispensing of an abortion
8 inducing drug on a form drafted by the state department, the purpose
9 and function of which shall be the improvement of maternal health and
10 life through the compilation of relevant maternal life and health factors
11 and data, and a further purpose and function shall be to monitor all
12 abortions performed in Indiana to assure the abortions are done only
13 under the authorized provisions of the law. For each abortion
14 performed and abortion inducing drug provided, prescribed,
15 administered, or dispensed, the report shall include, among other
16 things, the following:
17 (1) The age of the patient.



- 1 (2) Whether a waiver of consent under section 4 of this chapter
- 2 was obtained.
- 3 (3) Whether a waiver of notification under section 4 of this
- 4 chapter was obtained.
- 5 (4) The date and location, including the facility name and city or
- 6 town, where the:
- 7 (A) pregnant woman:
- 8 (i) provided consent; and
- 9 (ii) received all information;
- 10 required under section 1.1 of this chapter; and
- 11 (B) abortion was performed or the abortion inducing drug was
- 12 provided, prescribed, administered, or dispensed.
- 13 (5) The health care provider's full name and address, including the
- 14 name of the physicians performing the abortion or providing,
- 15 prescribing, administering, or dispensing the abortion inducing
- 16 drug.
- 17 (6) The city and county where the pregnancy termination
- 18 occurred.
- 19 (7) The age of the father, or the approximate age of the father if
- 20 the father's age is unknown.
- 21 (8) The patient's county and state of residence.
- 22 (9) The marital status of the patient.
- 23 (10) The educational level of the patient.
- 24 (11) The race of the patient.
- 25 (12) The ethnicity of the patient.
- 26 (13) The number of the patient's previous live births.
- 27 (14) The number of the patient's deceased children.
- 28 (15) The number of the patient's spontaneous pregnancy
- 29 terminations.
- 30 (16) The number of the patient's previous induced terminations.
- 31 (17) The date of the patient's last menses.
- 32 (18) The physician's determination of the gestation of the fetus in
- 33 weeks.
- 34 (19) The reason for the abortion.
- 35 (20) Whether the patient indicated that the patient was seeking an
- 36 abortion as a result of being:
- 37 (A) abused;
- 38 (B) coerced;
- 39 (C) harassed; or
- 40 (D) trafficked.
- 41 (21) The following information concerning the abortion or the
- 42 provision, prescribing, administration, or dispensing of the



1 abortion inducing drug:

2 (A) The postfertilization age of the fetus (in weeks).

3 (B) The manner in which the postfertilization age was
4 determined.

5 (C) The gender of the fetus, if detectable.

6 (D) Whether the fetus has been diagnosed with or has a
7 potential diagnosis of having Down syndrome or any other
8 disability.

9 (E) If after the earlier of the time the fetus obtains viability or
10 the time the postfertilization age of the fetus is at least twenty
11 (20) weeks, the medical reason for the performance of the
12 abortion.

13 (22) For a surgical abortion, the medical procedure used for the
14 abortion and, if the fetus had a postfertilization age of at least
15 twenty (20) weeks:

16 (A) whether the procedure, in the reasonable judgment of the
17 health care provider, gave the fetus the best opportunity to
18 survive;

19 (B) the basis for the determination that the pregnant woman
20 had a condition described in this chapter that required the
21 abortion to avert the death of or serious impairment to the
22 pregnant woman; and

23 (C) the name of the second doctor present, as required under
24 IC 16-34-2-3(a)(3).

25 (23) For a nonsurgical abortion, the precise drugs provided,
26 prescribed, administered, or dispensed, and the means of delivery
27 of the drugs to the patient.

28 (24) For a nonsurgical abortion, that the manufacturer's
29 instructions were provided to the patient and that the patient
30 signed the patient agreement.

31 (25) For an abortion performed before twenty (20) weeks of
32 postfertilization age of the fetus, the medical indication by
33 diagnosis code for the fetus and the mother.

34 (26) The mother's obstetrical history, including dates of other
35 abortions, if any.

36 (27) Any preexisting medical conditions of the patient that may
37 complicate the abortion.

38 (28) The results of pathological examinations if performed.

39 (29) For a surgical abortion, whether the fetus was delivered
40 alive, and if so, how long the fetus lived.

41 (30) Records of all maternal deaths occurring at the location
42 where the abortion was performed or the abortion inducing drug



was provided, prescribed, administered, or dispensed.

(31) The date the form was transmitted to the state department and, if applicable, separately to the department of child services.

(b) The health care provider shall complete the form provided for in subsection (a) and shall transmit the completed form to the state department, in the manner specified on the form, within thirty (30) days after the date of each abortion. However, if an abortion is for a female who is less than sixteen (16) years of age, the health care provider shall transmit the form to the state department and separately to the department of child services within three (3) days after the abortion is performed. **A report submitted by a health care provider under this subsection is a medical record under IC 5-14-3-4(a)(9), is confidential, and may not be disclosed by the state department to the public under IC 5-14-3.**

(c) The dates supplied on the form may not be redacted for any reason before the form is transmitted as provided in this section.

(d) Each failure to complete or timely transmit a form, as required under this section, for each abortion performed or abortion inducing drug that was provided, prescribed, administered, or dispensed, is a Class B misdemeanor.

(e) On a quarterly basis, the state department shall compile a public report providing the following:

(1) Statistics for the previous calendar quarter from the information submitted under this section.

(2) Statistics for previous calendar years compiled by the state department under this subsection, with updated information for the calendar quarter that was submitted to the state department after the compilation of the statistics.

The state department shall ensure that no identifying information of a pregnant woman is contained in the report.

(f) The state department shall:

(1) summarize aggregate data from all data submitted under this section; and

(2) submit the data, before July 1 of each year, to the United States Centers for Disease Control and Prevention for its inclusion in the annual Vital Statistics Report.

SECTION 2. An emergency is declared for this act.

